

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hannah Sampson	Team: Squad #09	CCRB Case #: 201707431	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 09/07/2017 6:30 PM, Friday, 09/08/2017 12:00 AM	Location of Incident: § 87(2)(b), 120th Precinct stationhouse	18 Mo. SOL 3/7/2019	Precinct: 120
Date/Time CV Reported Fri, 09/08/2017 6:26 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 09/08/2017 6:26 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Giuliano	19020	958637	120 PCT
2. POM Jihad Shahin	10451	956256	120 PCT
3. POM Christophe Adinolfi	21566	959441	120 PCT
4. LT Ryan Padell	00000	944870	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Moon	05309	933052	120 PCT
2. POM William Squires	23777	958092	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Vincent Giuliano	Discourtesy: On September 7, 2017, at § 87(2)(b) in Staten Island, Police Officer Vincent Giuliano spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Jihad Shahin	Discourtesy: On September 7, 2017, at § 87(2)(b) in Staten Island, Police Officer Jihad Shahin spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . LT Ryan Padell	Abuse: On September 7, 2017, at the 120th Precinct Stationhouse in Staten Island, Lieutenant Ryan Padell did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated
D . POM Christophe Adinolfi	Discourtesy: On September 8, 2017, at the 120th Precinct Stationhouse in Staten Island, Police Officer Christopher Adinolfi spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Christophe Adinolfi	Abuse: On September 8, 2017, at the 120th Precinct Stationhouse in Staten Island, Police Officer Christopher Adinolfi did not process § 87(2)(b)'s complaint regarding an officer.	E . Unsubstantiated

Case Summary

On September 8, 2017, § 87(2)(b) filed this complaint with the CCRB via telephone.

On September 7, 2017, at approximately 6:38 p.m., § 87(2)(b) was arrested at § 87(2)(b) in Staten Island by PO Vincent Giuliano and PO Jihad Shahin, both of the 120th Precinct. PO Giuliano and PO Shahin allegedly spoke discourteously to § 87(2)(b) on scene **(Allegations A and B: Discourtesy, unsubstantiated)**. § 87(2)(b) was charged with assault in the third degree and was transported to the 120th Precinct. While being brought into the stationhouse and once in front of the desk, § 87(2)(b) allegedly requested medical attention from Lt. Ryan Padell of the 120th Precinct **(Allegation C: Abuse of Authority, unsubstantiated)**. Several hours later, § 87(2)(b) was taken to § 87(2)(b) in Staten Island. On September 8, 2017, at approximately 6:00 p.m., § 87(2)(b) returned to the 120th Precinct Stationhouse to retrieve her property. § 87(2)(b) informed an officer, identified by the investigation as PO Christopher Adinolfi of the 120th Precinct that she wished to file a complaint against an officer. PO Adinolfi allegedly responded, “I don’t have to do shit” **(Allegation D: Discourtesy, unsubstantiated)**. PO Adinolfi then instructed § 87(2)(b) to call the Civilian Complaint Review Board and allegedly told her to, “Get the hell out of here” **(Allegation E: Abuse of Authority, unsubstantiated; Allegation D continued)**.

There is no video footage for this incident.

Findings and Recommendations

Allegation A – Discourtesy: On September 7, 2017, at § 87(2)(b) in Staten Island, Police Officer Vincent Giuliano spoke discourteously to § 87(2)(b)

Allegation B – Discourtesy: On September 7, 2017, at § 87(2)(b) in Staten Island, Police Officer Jihad Shahin spoke discourteously to § 87(2)(b)

It is undisputed that PO Giuliano and PO Shahin arrested § 87(2)(b) § 87(2)(g)

§ 87(2)(b) was interviewed at the CCRB on September 20, 2017 [BR 02]. She stated that she and her former girlfriend, § 87(2)(b) got into an argument and § 87(2)(b) yelled for § 87(2)(b) to get out of her apartment. § 87(2)(b) then went into a back room and later informed § 87(2)(b) that she scratched herself on the ear. § 87(2)(b) called the police and two officers, identified by the investigation as PO Giuliano and PO Shahin, responded. The officers informed § 87(2)(b) that she was being arrested because § 87(2)(b) showed an injury to her ear and she alleged that § 87(2)(b) caused it. During her sworn statement, § 87(2)(b) said that the officers on scene were speaking “rudely” to her. A follow-up call was placed to § 87(2)(b) on November 2, 2017 [BR 03]. She stated that as she attempted to leave § 87(2)(b) house, her arresting officer, identified by the investigation as PO Giuliano, stated, “You’re not going any-fucking where” or “You’re not fucking going anywhere.” As § 87(2)(b) was being handcuffed, PO Giuliano told § 87(2)(b) to get her hands behind her “fucking back.” When § 87(2)(b) asked to see the alleged injury to § 87(2)(b) ear, PO Giuliano responded, “I don’t have to show you shit.” § 87(2)(b) added that the other officer on scene, identified via the investigation as PO Shahin, stated “Fuck her.”

§ 87(2)(b) provided a phone statement on December 12, 2017, and stated that she did not hear an officer use profanity towards § 87(2)(b) [BR 04]. However, approximately 20 minutes after the officers’ arrival on scene, § 87(2)(b) went into her residence while § 87(2)(b) remained

outside. When § 87(2)(b) went back outside, § 87(2)(b) had already been transported to the stationhouse.

PO Giuliano was interviewed at the CCRB on December 13, 2017 [BR 05]. He denied making the statements above and said he did not use any profanity at the scene of § 87(2)(b)'s arrest. PO Shahin was interviewed on December 14, 2017 [BR 06]. He did not state "fuck her" in any context on scene and denied using any profanity at the arrest location.

Event § 87(2)(b) was generated for this incident [BR 12]. It shows that the Stapleton Auto Unit transported § 87(2)(b) at 6:39 p.m. and that they arrived at the 120th Precinct Stationhouse at 6:48 p.m. PO Anthony Moon and PO William Squires, both of the 120th Precinct, were assigned to the Stapleton Auto Unit during this incident [BR 11]. PO Moon was interviewed at the CCRB on February 27, 2018 [BR 07]. He did not recall hearing any officer use profanity on scene. PO Squires was interviewed at the CCRB on February 28, 2017 [BR 08]. He did not recall this incident.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: On September 7, 2017, at the 120th Precinct Stationhouse in Staten Island, Lieutenant Ryan Padell did not obtain medical treatment for

§ 87(2)(b)

It is undisputed that § 87(2)(b) was brought in front of the desk at the 120th Precinct Stationhouse at 6:48 p.m. on September 7, 2017, and was admitted to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) said that as she was being brought into the 120th Precinct Stationhouse, she stated she was not feeling well and that she needed to go to the hospital. Once in front of the desk, she again requested to go to the hospital. Instead of being taken to the hospital, § 87(2)(b) was lodged in the holding cells. Several hours later, § 87(2)(b) informed a female officer that she had not yet been taken to the hospital. Approximately one hour later, an ambulance arrived and transported § 87(2)(b) to § 87(2)(b). The investigation was unable to determine who called an ambulance for § 87(2)(b)

§ 87(2)(b) was not with § 87(2)(b) at the stationhouse and therefore could not testify to this allegation.

PO Giuliano stated that the Stapleton Auto Unit transported § 87(2)(b) to the stationhouse while he and PO Shahin stayed on scene to complete paperwork with § 87(2)(b). PO Giuliano did not recall if § 87(2)(b) was still downstairs when he arrived at the stationhouse and said that the

Stapleton Auto Unit brought § 87(2)(b) in front of the desk. PO Giuliano was not aware of any requests § 87(2)(b) made for medical attention and did not have any reason to believe § 87(2)(b) needed medical attention. However, PO Giuliano did state that someone called to inform him that § 87(2)(b) was taken to the hospital while in custody. PO Giuliano did not know when § 87(2)(b) was transported, by whom, or any of the circumstances surrounding her removal to the hospital.

PO Shahin stated that he asked § 87(2)(b) on scene if she needed medical attention and that she refused. He added that he was present as § 87(2)(b) was brought into the stationhouse and that he asked her if she needed medical attention while she was in front of the desk. § 87(2)(b) again refused medical attention in front of the desk. PO Shahin was not aware of § 87(2)(b) requesting medical attention at any time during her arrest or processing.

PO Moon stated that he and PO Squires transported § 87(2)(b) and brought her into the stationhouse. § 87(2)(b) did not complain of any need of medical attention as she was brought inside. Once inside, the officers informed her that her arresting officers, PO Giuliano and PO Shahin, were still on scene completing paperwork. While waiting for PO Giuliano and PO Shahin, § 87(2)(b) did not make any request for medical attention. Once PO Giuliano and PO Shahin arrived at the stationhouse, PO Moon and PO Squires did not have any further interaction with § 87(2)(b). As noted above, PO Squires did not recall this incident.

As per the Roll Call, Sgt. Kristen Schafer, who has since been promoted to lieutenant and was transferred the 68th Precinct, was assigned as the Desk Officer during this incident. However, § 87(2)(b) described a male in a white shirt as the officer behind the desk at the time she requested medical attention. § 87(2)(g) The Tour 3 Roll Call shows that Lt. Padell was the only lieutenant working at the time and was assigned to Platoon Commander. There were no higher ranking officers assigned to Tour 3. § 87(2)(g)

Lt. Padell was interviewed at the CCRB on February 6, 2018 [BR 09]. He did not recall seeing § 87(2)(b) on September 7, 2017. He further stated that he was not aware of her requesting medical attention and that he did not refuse to provide her medical attention.

The Command Log notes that § 87(2)(b) was brought to the stationhouse at 6:48 p.m. [BR 13]. Her condition was noted as “apparently normal.” There was no Medical Treatment of Prisoner Form on file at the 120th Precinct [BR 14].

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D: Discourtesy – On September 8, 2017, at the 120th Precinct Stationhouse in Staten Island, Police Officer Christopher Adinolfi spoke discourteously to § 87(2)(b)

Allegation E: Abuse of Authority – On September 8, 2017, at the 120th Precinct Stationhouse in Staten Island, Police Officer Christopher Adinolfi did not process

§ 87(2)(b) s complaint regarding an officer.

It is undisputed that § 87(2)(b) spoke to PO Adinolfi at the 120th Precinct Stationhouse and that she complained about not receiving all of her property. § 87(2)(g)

§ 87(2)(b) stated that on September 8, 2017, she spoke to an officer seated at the “front desk” and asked to make a complaint against her arresting officer for not arresting a female that assaulted her in the hospital. The officer, identified by the investigation as PO Adinolfi, responded, “I don’t have to do shit. Call Civil Complaint, call this, and call that. Get the hell out of here.” § 87(2)(b) then asked about her property and PO Adinolfi informed her that whatever was on her voucher was returned to her. § 87(2)(b) explained that the vouchers were changed and that she knew that not everything in her bag was returned. § 87(2)(b) called the CCRB while in the stationhouse to report the incident. PO Adinolfi verbally provided his name to § 87(2)(b)

PO Adinolfi was interviewed at the CCRB on January 19, 2018 [BR 10]. He stated that § 87(2)(b) arrived at the 120th Precinct Stationhouse to pick up her property and appeared annoyed when she came in. PO Adinolfi processed § 87(2)(b) s property request and said she became upset and complained that a sandwich was not returned. Once § 87(2)(b) was given her property back and was explained that food is not vouchered and returned, she left the stationhouse. PO Adinolfi did not recall if § 87(2)(b) asked to file a complaint against an officer. PO Adinolfi stated that when a civilian comes to the stationhouse to file a complaint against an officer, PO Adinolfi is to notify the Desk Officer. If the Desk Officer is not nearby, PO Adinolfi suggested that there are phone numbers to IAB and the CCRB posted in the stationhouse the civilian can be directed to. PO Adinolfi was unsure of the exact procedure regarding how to process a civilian complaint against an officer in the event the Desk Officer is not nearby. PO Adinolfi did not recall directing § 87(2)(b) to call the CCRB, IAB, or any other agency. PO Adinolfi further stated that civilians are permitted to file reports/complaints against an officer at the stationhouse but that a supervisor, typically the Desk Officer, is required to take the complaint. PO Adinolfi did not recall telling § 87(2)(b) “I don’t have to do shit” or instructing her to, “Get the hell out of here.” PO Adinolfi did not recall using profanity toward § 87(2)(b) during this incident.

Lt. Padell stated that he first noticed § 87(2)(b) as PO Adinolfi obtained her property. Lt. Padell was roughly 15 to 20 feet from § 87(2)(b) and PO Adinolfi and was seated behind the precinct desk. Lt. Padell could not determine what was being said between PO Adinolfi and § 87(2)(b) and could only gather that she was there to retrieve her property. § 87(2)(b) was walking angrily around the reception area and was yelling into her phone. Lt. Padell could not overhear anything she was saying into the phone. Lt. Padell noted that if § 87(2)(b) wished to file a complaint against an officer, she would have been directed to the T/S desk. The T/S operator would then inform the Desk Officer of the complaint and the Desk Officer would process the complaint. Lt. Padell was not informed of nor was he aware of § 87(2)(b) wanting to file a complaint against an officer. Lt. Padell stated that the precinct desk is always manned and that complaints against an officer should be processed by a supervisor. Lt. Padell did not hear PO Adinolfi state, “I don’t have to do shit” or, “Get the hell out of here.”

Given that § 87(2)(b) called the CCRB while at the stationhouse, a portion of this incident was captured in the intake audio [BR 01]. § 87(2)(b) is heard stating that she is trying to make a complaint and that the officer was not letting her. An individual responds to § 87(2)(b) but the response is unclear. § 87(2)(b) then asks for PO Adinolfi's name and he provides it to her verbally. PO Adinolfi reviewed the audio during his statement with the CCRB. He maintained that he was only aware of § 87(2)(b)'s complaints regarding her property.



2018-03-12_9-39-55.mp4

The Tour 3 Roll Call shows that PO Adinolfi was assigned to T/S Operator and Lt. Padell was assigned to Desk Officer during this incident.

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended that **Allegations D and E** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to three CCRB complaints and has been named as a victim in seven allegations [BR 15]:
 - § 87(2)(b) [REDACTED]
 - [REDACTED]
- PO Giuliano has been a member-of-service for two years and this is the first CCRB complaint to which he has been a subject.
- PO Shahin has been a member-of-service for four years and has been a subject in one prior CCRB complaint and one allegation, which was not substantiated. § 87(2)(g) [REDACTED].
- Lt. Padell has been a member-of-service for 10 years and has been a subject in three prior CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g) [REDACTED].

- PO Adinolfi has been a member-of-service for two years and has been a subject in one other CCRB complaint and two allegations. As of March 12, 2018, the case is still open and under investigation.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- A Notice of Claim request was submitted on March 9, 2018, and will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: ___9___

Investigator: _____
 Signature Print Title & Name Date

Squad Leader: _____
 Signature Print Title & Name Date

Reviewer: _____
 Signature Print Title & Name Date